

MUTUAL NON-DISCLOSURE AGREEMENT

(Draft template — for technical evaluation purposes)

NOT LEGAL ADVICE — READ BEFORE USE

This is a draft template, not a finished, legally-reviewed agreement. It was prepared without the involvement of a lawyer. Have qualified legal counsel in your own jurisdiction review and, if needed, revise this document before sending it to any counterparty or signing it yourself. Bracketed text like [COMPANY NAME] and [GOVERNING LAW / JURISDICTION] must be filled in or removed before use — an NDA with an unresolved governing-law clause is significantly weaker if it is ever actually needed.

SCOPE OF THIS TEMPLATE

This agreement covers confidentiality only — protecting the circuit(s), benchmark data, and any other confidential material either party shares during a technical evaluation. It does NOT address ownership of improvements, derivative works, licensing terms, or commercialization — those belong in a separate agreement, negotiated only if the evaluation leads toward a deeper engagement. Keeping this document narrow is deliberate: a confidentiality agreement that tries to also settle IP and commercial terms up front is slower to negotiate and rarely serves either side well at the evaluation stage.

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of [DATE] (the "Effective Date") by and between:

TN Holdings ("TN Holdings"), and

[COUNTERPARTY LEGAL NAME] ("Counterparty"),

each individually a "Party" and together the "Parties," for the purpose described in Section 2 below.

1. Definition of Confidential Information

"Confidential Information" means any technical, business, or other information disclosed by one Party (the "Disclosing Party") to the other (the "Receiving Party") in connection with the Purpose, whether disclosed orally, in writing, or in any other form, and whether or not marked "confidential." For Counterparty, this includes without limitation any quantum circuit, circuit design, workload, or dataset shared with TN Holdings for evaluation. For TN Holdings, this includes without limitation any benchmark result, performance figure, or technical finding shared with Counterparty that is not already published in TN Holdings' own public repository or papers.

2. Purpose

The Parties wish to explore whether TN Holdings' PSF-Zero software performs well against a circuit or workload representative of Counterparty's own use case (the "Purpose"), and Confidential Information may be exchanged solely to evaluate that question. Neither Party is obligated by this Agreement to proceed to any further engagement, license, or commercial arrangement.

3. Exclusions

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was already known to the Receiving Party, without an obligation of confidentiality, before disclosure; (c) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; (d) is rightfully received from a third party without breach of any confidentiality obligation; or (e) is required to be disclosed by law, regulation, or valid legal process, provided the Receiving Party gives the Disclosing Party prompt notice where legally permitted, so the Disclosing Party may seek a protective order.

4. Obligations of the Receiving Party

The Receiving Party shall: (a) use Confidential Information solely for the Purpose; (b) not disclose Confidential Information to any third party without the Disclosing Party's prior written consent; (c) limit access to Confidential Information to its own employees or contractors who need it for the Purpose and who are bound by confidentiality obligations at least as protective as this Agreement; and (d) protect Confidential Information using at least the same degree of care it uses for its own confidential information of similar importance, and in no event less than reasonable care.

5. No License; No IP Transfer

Nothing in this Agreement grants either Party any license, right, or interest in the other Party's intellectual property, including any software, source code, circuit, or dataset, beyond the limited right to review Confidential Information for the Purpose. In particular, sharing a circuit under this Agreement does not grant TN Holdings any right to use, publish, or retain that circuit beyond what is needed for the Purpose, and running PSF-Zero against Counterparty's circuit does not grant Counterparty any license to PSF-Zero itself, which remains governed by its own public license (AGPL v3) and any separate agreement the Parties may later enter.

6. Term

This Agreement is effective as of the Effective Date and continues for [TERM, e.g., ONE (1) YEAR] unless earlier terminated by either Party on [30] days' written notice. The obligations of confidentiality in Sections 3-5 survive termination or expiration of this Agreement for a period of [TWO (2) YEARS / THREE (3) YEARS] from the date each item of Confidential Information was disclosed.

7. Return or Destruction

Upon the Disclosing Party's written request, or upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information in its possession, and certify destruction in writing if requested — except that the Receiving Party may retain one copy in a secure archive solely for legal compliance purposes, subject to the continuing confidentiality obligations of this Agreement.

8. No Warranty

All Confidential Information is provided "as is." Neither Party makes any warranty, express or implied, regarding the accuracy, completeness, or fitness for any purpose of the Confidential Information it discloses.

9. Remedies

The Parties agree that a breach of this Agreement may cause irreparable harm for which monetary damages alone would be an inadequate remedy, and that the non-breaching Party is entitled to seek injunctive relief in addition to any other remedies available at law or in equity.

10. No Obligation to Contract

Nothing in this Agreement obligates either Party to disclose any particular information, to proceed with the Purpose, or to enter into any further agreement. Either Party may decline to proceed at any time, for any reason, without liability beyond the confidentiality obligations already incurred under this Agreement.

11. Governing Law

This Agreement is governed by the laws of [GOVERNING LAW / JURISDICTION — TO BE COMPLETED WITH COUNSEL], without regard to its conflict-of-law principles. [Add a dispute-resolution / venue clause here once jurisdiction is decided.]

12. General

This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions on that subject. Neither Party may assign this Agreement without the other Party's prior written consent, except in connection with a merger, acquisition, or sale of substantially all assets. If any provision of this Agreement is held unenforceable, the remaining provisions continue in full force. This Agreement may be signed in counterparts, including by electronic signature.

SIGNATURES

TN HOLDINGS

Signature: _____

Name: _____

Title: _____

Date: _____

[COUNTERPARTY LEGAL NAME]

Signature: _____

Name: _____

Title: _____

Date: _____